

Based on the above, Plaintiff's Motion for Summary Judgment against Defendant Taleb is **granted**. Plaintiff is entitled to an award of \$377,683.50 against Defendant Taleb.

9. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
HEARING ON MOTION IN RE: ORDER SETTING ASIDE DEFAULT RE: AURIN CANSON
FILED BY: CANSON, AURIN

TENTATIVE RULING:

Summary

Defendant Aurin Canson moves to set aside the default entered against him pursuant to Code of Civil Procedure § 473 (b). The motion is **granted**. Defendant has leave to file his answer (a proposed copy of which is attached as an exhibit to the Amended Notice of Motion) on or before July 20, 2026, as discussed below.

If the answer is not filed by that date, plaintiff may file a declaration as to that fact and the Court will set aside this ruling, leaving the default in place, and calendar a prove up hearing.

Background

Plaintiff obtained permission to serve Aurin Canson by publication and completed such service on August 28, 2025. Plaintiff filed proof on September 5, 2025. The Court clerk entered Canson's default on October 29, 2025. Although a default judgment was requested on December , and although various declarations were submitted, no judgment against Canson has been entered at this time.

On April 23, 2026, Canson filed this motion to set aside his default. In support of the motion, he declares that he was not aware of the case or that his default had been taken until December of 2025.

The opposition contends Canson waited an unreasonably long time to seek relief from default, and that his request should therefore be denied. The opposition contends Canson is being misled and taken advantage of by his "fraudster-forger-felon" attorneys. Plaintiff also argues Canson had constructive notice of this suit because his co-defendants were representing him in other matters.

Standard

Code of Civil Procedure, § 473 (b) states, in relevant part,

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

Code of Civil Procedure section 473 is a remedial statute to be "applied liberally" in favor of relief if the opposing party will not suffer prejudice. The law strongly favors trial and disposition on

the merits. “Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 24, quoting *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 235). Where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted, “very slight evidence will be required to justify a court in setting aside the default.” (*Murray & Murray v. Raissi Real Estate Development, LLC* (2015) 233 Cal.App.4th 379, 385.) To qualify for discretionary relief, the moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. (*Id.*)

To the extent the evidence is in conflict, it must be construed in light of the policy favoring trial on the merits. “Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980, citations omitted.)

Discussion

There is no dispute that plaintiff here served Canson by publication. There is only speculation as to what Canson’s attorneys actually told him about the suit, if anything. Further, Canson points out that plaintiff knew at all times where he lived because plaintiff was simultaneously prosecuting a forcible detainer action against Canson and could have attempted service at the subject address.

Defendant here has submitted his own declaration under penalty of perjury which denies having had notice of the lawsuit in time to respond. Further, he provides an excuse for the delay after he learned about this suit. Specifically, Canson claims to be homeless, unable to provide the required address to current counsel, who requested an address in order to sub into the case pursuant to a limited scope representation agreement. Canson claims, albeit somewhat coincidental at best, that defendant Iwuchukwu “finally” permitted Canson to use his mailing address in April 2026, when this motion was filed and just prior to the six-month deadline to file this motion (May 2026).

On reply, while Canson points to the plaintiff’s obligation to mail the Summons, Complaint, and Order for Publication if Canson’s address was ascertained, the argument is unpersuasive. It appears that not even Canson knew his mailing address and that is the very basis for the delay in filing this motion from December 2025 to April 2026. As for Canson’s contention that he should have been served personally in Court in September of 2025, the argument is not necessary to the outcome.

This motion is based on surprise, inadvertence, or excusable neglect, and it was filed prior to the expiration of six months from the date default was taken (December 8, 2025). While it is certainly possible that Canson is being misled and taken advantage of, the attorney making this motion on behalf defendant Canson is not among those attorneys accused of wrongdoing (even assuming the Court could accept as true the assertions made in the opposition papers). Canson is simply more likely to be capable of defending himself if the default is set aside and he has sought relief requesting such opportunity. No judgment has been entered and the policy in favor of disposing of cases on their merits takes precedence over any policy favoring finality of judgments.

Accordingly, the motion must be granted.

10. 9:00 AM CASE NUMBER: C25-00251
CASE NAME: INTREPID INVESTORS, LLC VS. WEI SHI
HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: INTREPID INVESTORS, LLC

TENTATIVE RULING:

Summary: Plaintiff Intrepid Investors Inc's Motion for Leave to file First Amended Complaint is **granted** as unopposed. The Court will execute the proposed order lodged on February 26, 2026. Plaintiff is ordered to file and serve the First Amended Complaint no later than ten (10) days from the date of the hearing. No appearance is required at the hearing on July 8, 2026.

11. 9:00 AM CASE NUMBER: C25-01690
CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH
HEARING ON MOTION IN RE: ORDER DESIGNATING CASE COMPLEX UNDER CRC 3.400
FILED BY: CITY OF ANTIOCH

TENTATIVE RULING:

ORDER OF RECUSAL AND REASSIGNMENT

Currently set for hearing on July 8, 2026, is Defendant City of Antioch's Motion for an Order designating this case as complex under California Rule of Court 3.400. Having reviewed the filings and record herein, the Court makes the following findings and orders:

FINDINGS

This matter is currently assigned to Judge Leonard Marquez, Department 34, for all purposes. No hearings have been conducted in this matter before Department 16, the Honorable Benjamin T. Reyes II.

As supervising judge of the civil division, Judge Reyes is assigned to hear all motions to designate cases as complex under Rule 3.400. Upon review of this motion, the Court notes that Defendant and Moving Party, City of Antioch, is represented by Meyers Nave Riback Silver & Wilson, A Professional Corporation ("Meyers Nave" or "Firm"), and by Judge Reyes' former law partner, Douglas M. McManamon, Esq. (the term "partner" being used herein as a term of art, as Meyers Nave is a professional corporation).

Judge Reyes makes the following disclosures and, pursuant to Code of Civil Procedure section 170.3, subdivision (a), recuses himself as follows:

Prior to his appointment to the Superior Court in 2017, Judge Reyes was an equity shareholder of Meyers Nave. Since June 2025, Judge Reyes has been a participant in the Firm's non-qualified deferred compensation and retirement plan. Judge Reyes receives annual distributions from the Firm's deferred compensation plan, which constitutes a financial interest pursuant to Code of Civil Procedure section 170.5, subdivisions (a) and (b).

Mr. McManamon, also Judge Reyes' former law partner, is appearing as counsel for the Moving Party.